

From: Roman Segal

Re: Final Exam (Q1, Q2)

### Question 1

Recently enacted state laws have recognized access to a college education and opportunities for home ownership as fundamental rights. These developments raise constitutional questions about whether such interests should be elevated to the status of fundamental rights under federal law. Fundamental rights arise when they are specified in the Constitution or deemed essential to ordered liberty and deeply rooted in the nation's history and traditions. Using case law, constitutional principles, and founding philosophy covered in class, convincing arguments exist both for and against treating these interests as fundamental.

Education has long been viewed as essential to democratic participation. In *Brown v. Board of Education*, the Supreme Court described education as “the very foundation of good citizenship.” Our class materials repeatedly emphasized that an educated public strengthens self-governance, a value reflected in The Federalist Papers. Federalist *No. 10* warned of the dangers of factions and suggested that informed citizens are necessary to preserve the Republic. Supporters therefore argue that, in a modern economy where a college degree is often necessary for employment and civic opportunity, higher education has become indispensable to exercise many other liberties. From this perspective, college education should qualify as a fundamental right worthy of heightened constitutional protection.

However, the Supreme Court firmly rejects this classification. In *San Antonio Independent School District v. Rodriguez* (1973), the Court held that education—while critically important—is not a fundamental right under the U.S. Constitution because it is not explicitly mentioned in the text. The Court declined to broaden substantive due process, emphasizing judicial restraint and the Tenth Amendment's allocation of educational authority to the states. The course videos discussing judicial limits reinforced this point, explaining that the Justices fear transforming social policy goals into constitutional mandates without clear historical grounding. Thus, as federal law currently stands, the right to a college education is not recognized as fundamental.

Homeownership raises a similar tension. Property is strongly protected in the Constitution through the Due Process Clauses and the Takings Clause of the Fifth Amendment, and home ownership has historically supported economic stability and civic engagement. Founding-era materials in our readings connected property ownership to independence and political participation. Supporters argue that modern notions of liberty should recognize stable housing and ownership as essential to economic security and meaningful participation in society.

Yet the Supreme Court has refused to expand this into a government-guaranteed right to own a home. In *Lindsey v. Normet* (1972), the Court clarified that there is no fundamental right to housing or home ownership. The Constitution protects individuals from unfair loss of

property, but it does not require the government to provide property. Federalist No. 51 underscored concerns about excessive government power in redistribution, reinforcing why courts hesitate to constitutionalize economic entitlements.

In conclusion, while both college education and home ownership are vital components of opportunity and equality in American life, they remain policy decisions left primarily to state governments and legislatures. States may elevate these interests to protected rights within their borders, but under existing federal doctrine, neither qualifies as a fundamental right. The continued debate reflects developing societal expectations about what true liberty and equal citizenship require in the modern era.

## **Question 2**

In Federalist Paper No. 78, Hamilton argued the judiciary is the “least dangerous branch” because it lacks control over the sword (*executive power*) and the purse (*legislative power*) and can act only through judgment. Today, this still holds true. Congress can create laws, control spending, and significantly impact citizens’ lives. The President can command the military, enforce laws, and act swiftly in emergencies, making the Executive powerful. Courts must wait for cases, rely on others to enforce rulings, and remain bound by the Constitution. Although judicial decisions can be impactful, the judiciary remains the least dangerous branch.